

3-4-25

Feb. 26, 2025

Alice Torres Sutton, Manager and Owner
AT Sutton LLC dba
Bamboo Apartments
3802 Gulf Drive, 106 38th St., 100 38th St.
Holmes Beach, Florida 34217
alice@sutton-family.org

Mailing Address:
3606 W. Lykes Ave.
Tampa, Florida 33609

Ms. Laura Samford
Mr. Christopher John Patterson
Apex Claims Management
601 E. Zack St: Suite 110
Tampa, FL 33602

**RE: 3802 Gulf Drive Flood Claim Closing Letter Errors
Claim # N1478820240245**

Dear Ms. Samford, & Mr. Patterson;

I received a closing letter for my flood claim, and it has the following errors.

1. Building Covered Damages and Building Payment Amount on the letter do not match my POL amount or the check amount that I received. I received a check for Building Payment of \$107,047.66, which matches the POL.
2. The items listed as "denied" in the text of the letter were never part of my claim, and appear to be from someone else's claim.

Could a corrected letter please be issued, to avoid further confusion?

Thank you for your help.

Sincerely,

Alice Torres Sutton, Mgr., AT Sutton LLC DBA Bamboo Apartments

Attachments:

- 3802 Gulf Drive POL excerpted page 1
- Closing Letter from NGM rcv'd 02-14-25

CC: Melissa Baldwin, NGM/Think Taurus

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PINELLAS COUNTY CONSUMER PROTECTION

14250 49th Street N., Suite 1000, Rm. 2

Clearwater, FL 33762

(727) 464-6200

FAX: (727) 464-6129

EMAIL: consumer@pinellas.gov

GENERAL COMPLAINT FORM

YOUR NAME: HARRY LESTER

Address: 1100 CURLEW RD LOT # 185 (NOW IT IS
LOT # 145 AS WE MOVED OUT OF FLOODED HOUSE.

Phone Number: 727 734 1399 Email Address: HARRY LESTER34@GMAIL
CELL 727 463 2588 COM.

COMPLAINT IS AGAINST: FOREMOST FLOOD

Address: P.O BOX 2057 KALISPELL, MT 59903

Phone Number: 800 260 9270

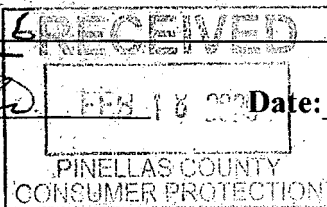
COMPLAINT DESCRIPTION: WHEN HURRICANE HIT, WE WERE IN
RODEWAY MOTEL AND COULD NOT GET TO OUR PLACE
FOR 3 DAYS DUE TO FLOOD WATER. ADJUSTER
CAME 2 WEEKS LATER TO TAKE PHOTOS. HIS NAME
IS JOHN HOFMANN, 612-237-2559.

INTERESTINLY, HE TOLD US WE COULD NOT BE
IN ANY OF THE PHOTOS THEY WOULD BE TAKING.

CLAIM # F2166020241233

ANOTHER PHONE # FOR THE FOREMOST FLOOD COMPANY

1 800 - 637 - 3846
Signature: Harry Lester Date: 2/9/25



Please complete if additional space is needed.

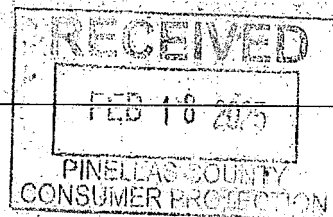
LOST ITEMS IN FLOOD 000

FRIDGE, ICE MAKER, STOVE, WASHER,
DRYER, SKILL SAW, ELEC DRILL,
MICROWAVE, SEWING MACHINE, COMPUTER,
PRINTER, DESK, 2 BED SPRINGS,
ELECTRIC BIKE, COFFEE TABLE 2 CHAIRS,
GOLF CART, BEDROOM CARPETS 2.

DUE TO OUR AGES 90 FOR ME AND 83 FOR
MY WIFE, ELDERLY ABUSE, FOR US MAY
BE IN THE PICTURE

I SENT THIS LIST WITH APPROXIMATE
COSTS TO THE ADJUSTER + I HAVE HIS E-MAIL
SAYING THANKS ME FOR THE INFO.

WE SPENT A MONTH AT A FRIENDS HOUSE \$850.00,
AND 3 NIGHTS AT RODEWAY INN. WE HAVE E-MAIL L
PHOTOS OF \$850 CHECK.



COMPLAINT DETAILS

Date of Transaction: _____

Total Amount: \$ 15,500

What adjustment do you consider fair?

- ☐ Credit
- ☐ Exchange
- ☐ Refund
- ☐ Repair
- ☐ Other
- ☒ Unsure LOSS OF HOME,
NEW SIDING,
17 NEW WINDOWS

What is the reason for your complaint?

- ☐ Advertised item not available
- ☐ Breach of contract
- ☐ Company out of business
- ☐ Defective merchandise
- ☐ Identity theft
- ☐ Misrepresentation – advertisement/oral
- ☒ Non-delivery of goods or services
- ☐ Unlicensed activity
- ☐ Unsatisfactory workmanship
- ☒ Other ELDERLY ABUSE, 90 + 83

First contact with the business was by:

- ☐ Business calling you
- ☒ Calling business
- ☐ Online transaction
- ☐ Door to door sale
- ☐ Visiting business location
- ☐ Other

Method of Payment:

- ☐ Cash
- ☐ Check
- ☐ Credit
- ☐ E-payment
- ☐ Finance agreement
- ☐ Multiple
- ☐ Other

Have you tried contacting the business to resolve your complaint? ☒ Yes ☐ No

Have you filed a civil suit regarding this matter? ☐ Yes ☒ No

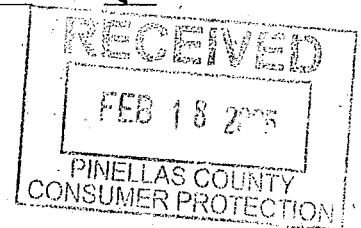
Would you want an investigator to contact you? ☒ Yes ☐ No

Would you like to be included on our email newsletter? ☒ Yes ☐ No

Are you currently serving on active duty in the U. S. Armed Forces? ☐ Yes ☒ No

Are you a veteran of the U. S. Armed Forces? ☐ Yes ☐ No

Your date of birth (optional): 12 / 11 / 1934



Attach copies of all documents: contract, checks, receipts, bills, estimates and invoices

Please contact the department if the party you have complained about resolves your complaint.

Foremost (Flood)

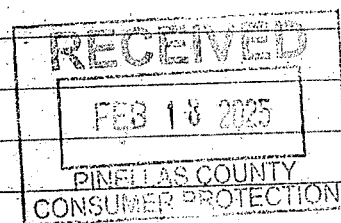
1-800-637-3846

Claim # F2166020241233

12/27 - Customer service has sent
an email to Claims adjuster office
requesting final report or update

Lester Harry 34 @ gmail.com

OR, harrylester185 @ gmail.com



[Dashboard](#)[Quotes & Applications](#)[Policy Search](#)[Private Flood Servicing](#)[Activity Log & Tasks](#)[Document Center](#)[Agent Training & Resources](#)[Back to Policy](#)

Info 8718770846 Policy Type: Flood Program

Claim No : F2166020241233

Property Location:

1100 Curl...

Do you want to add Temporary Location?: LOT #15 FOR A MONTH
RODEWAY INN 3 NIGHTS

Contact No. *

(727) 463-2581

Second Contact No.:

Secondary Phc

Email: *

hrlest4@aol.co

Accept Text:

HARRY LESTER 34 @gmail.com

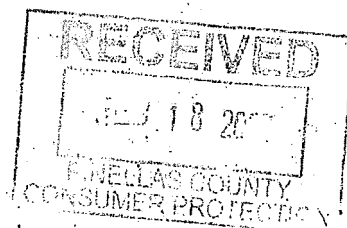
Date of Loss *

09/26/2024

Additional Details (Optional)

Status : APPROVED

MHCCLAIMS3@gmail.com



EXPIRATION NOTICE



Foremost Insurance Company Grand
Rapids MI
<https://www.foremost.com/>
(800) 260-9270

Foremost Insurance Company Grand Rapids MI
PO Box 2057 Kalispell MT 59903 USA

145

PROPERTY ADDRESS : 1100 Curlew Rd Lot 185, Dunedin, FL, 34698
POLICY # : 8718770846
NFIP POLICY # : 8718770846
POLICY EXPIRATION DATE : 12/20/2024 12:01 am
POLICY ISSUED BY: Foremost Insurance Company Grand Rapids MI NAIC : 21660
PAYOR : Harry Lester

INSURED NAME & MAILING ADDRESS

Harry Lester
1100 Curlew Rd Lot 185,
Dunedin, FL, 34698

PAYOR CONTACT INFORMATION

Harry Lester
1100 Curlew Rd Lot 185, # 145 AFTER FLOOD
Dunedin, FL, 34698

FINAL INVOICE

Your flood insurance policy expired on 12/20/2024.

Please follow renewal instructions on the remittance coupon below.

Payment must be received by the insurer by the following date, or the policy will be ineligible to renew.

01-18-2025

Coverage Options:

Coverage Amounts:

Deductibles:

Premium:

	Building	Contents	Building	Contents	
A. Current Coverage	\$ 50,000	\$ 20,000	\$ 2,000	\$ 2,000	\$ 1,263
B. Increased Coverage	\$ 55,000	\$ 21,000	\$ 2,000	\$ 2,000	\$ 1,293

IMPORTANT: Your policy currently receives an Annual Increase Cap Discount of: \$ 451.

If your policy lapses, you will lose the Annual Increase Cap Discount and your premium will be higher.

If you have not made the payment previously, please use the pay stub below and enclosed envelope. You may pay by credit card online at <https://foremost.mypolicy.odysseynext.com/>. If you have any mortgage changes, please make sure your policy reflects the changes.

IF YOU HAVE ANY QUESTIONS ON YOUR POLICY, PLEASE CONTACT YOUR AGENT FOR ASSISTANCE.

AGENT : ROSS INSURANCE GROUP INC

ADDRESS : 934 CURLEW RD,

Notice Date : 12-20-2024

PHONE : (727) 734-7000

Keep this stub as your record

Dunedin, FL 34698

CHECKS OR DRAFTS ACCEPTED IN PAYMENT ONLY IN EVENT THEY ARE HONORED WHEN FIRST PRESENTED. THERE IS A \$25 FEE FOR A RETURNED CHECK.

To pay by check or money order:

- Make payment for the exact amount of the coverage option selected
- Full payment is required for the Option selected
- Payment Stub - please detach and return this portion with your payment
- Please include policy number on your check



For the fastest processing visit
<https://foremost.mypolicy.odysseynext.com/>

Or scan the code:

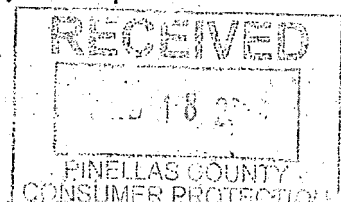
Make Check or Money Order Payable to:

POLICY # 8718770846
INSURED Harry Lester
RENEWAL DATE 12/20/2024
SELECT ONE ☐ Option A ☐ Option B
\$ 1,263 \$ 1,293

AMOUNT PAID \$

Want to overnight your payment? 555 Corporate Drive, Suite 101
Notice Date : 12-20-2024 Kalispell MT 59901
NAIC : 21660

Foremost Insurance Company Grand Rapids MI
PO Box 2057
Kalispell MT 59903



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FIRE INSURANCE EXCHANGE
FLOOD INSURANCE PROCESSING CENTER
PO Box 2057, Kalispell, MT, 59903
(888) 391-2810



Date : 11-11-2024
Insured : Harry Lester
Property Address : 1100 Curlew Rd Lot 185, Dunedin, FL, 34698 - 1911
Policy# : 8718770846
Date Of Loss : 10-10-2024

Dear Policyholder:

We have received and reviewed your Final Report. Unfortunately, we have determined your flood insurance policy cannot respond to assist you with the requested damage and your claim has been denied.

The reason for the denial is based upon the applicable provisions of the Standard Flood Insurance Policy (SFIP), as set forth below. You may obtain a copy of the Standard Flood Insurance Policy online at www.fema.gov/national-flood-insurance-program/standard-flood-insurance-policy-forms.

Based on the applicable policy provisions, we must deny coverage for the following:

We had to wait 3 days for the water to go down so we could find out the damage!!
No Direct Damage from Flood.

You have presented damages to your dwelling and other items. We have been unable to confirm that the claimed damages occurred as a direct result of a flood on October 10 2024. The Standard Flood Insurance Policy (SFIP) only pays for direct physical loss by or from flood. (Section I, II.B., II.14) *Adjusters did not show up for 2 weeks. They took pictures and they told us "We could not be in any of their photos!"*

You do not need to take any further action. However, if you wish to take further action concerning this determination, the Policyholder Rights document attached to this letter explains your options, several of which require prompt action.

We finally got help in sending damage photos to the adjuster
If you have any questions regarding this letter or your flood insurance policy, or any additional information for our review, please contact the claims department at (800) 759-8656. *and now we get this letter!!*

They evidently turned down our claim before they saw
This letter is not intended to waive or relinquish any of our rights or defenses, either listed or unlisted, under this policy of insurance.

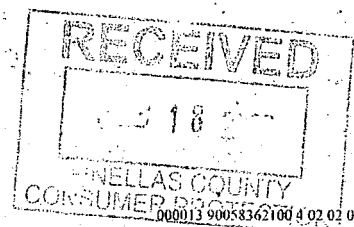
our photos!!

Sincerely,

Claims Department
FIRE INSURANCE EXCHANGE
Flood Processing Center

~~612-237-37559~~

612-237 2559



Foremost Insurance Company Grand Rapids MI
Flood Insurance Processing Center
PO Box 2057
Kalispell, MT 59903

000034 EXPBILDFR1

000034 900604010R17 0101 110 000 000 B#1

HARRY LESTER

1100 CURLEW RD LOT 185

DUNEDIN, FL 34698-1911

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Important Information

Maintaining flood insurance is the most important thing you can do to protect against the devastating cost of flooding.

You've taken the first step by purchasing a flood insurance policy, but to maintain coverage you must renew your policy each year. If your policy lapses, your property may not be covered and could become ineligible for certain premium discounts in the future.

Your insurer must receive your payment within 30 days of the policy expiration date to ensure continuous coverage.

If your mortgage lender pays your policy premium from an escrow account, we recommend that you confirm payment has been received.

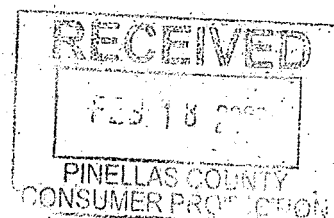
Renewing your policy is easy. Submit your payment directly to your insurance company by paying online. You can also pay by check or money order using the enclosed form. If you have questions about your coverage options or your flood policy, contact your insurance agent.

You have coverage options. You can either choose to keep your current coverage or adjust your coverage for additional protection. More renewal information is available at www.floodsmart.gov/how-renew-your-policy.

¹All checks will be converted into Electronic Funds Transfer (EFT). In the event of insufficient funds, we will attempt to make the transfer up to two times. If the 30th day falls on a Saturday, Sunday, or holiday, the deadline does not extend to the next business day. The payor can submit a payment by certified mail, and the payment receipt date is the certified mail date. This also includes reputable third-party delivery services that provide proof of the actual mailing and delivery date to the insurer.

²If the Payor listed is not correct, please contact your insurance agent to update your policy.

³Option B is the next higher coverage combination available and generally increases the current coverage by an inflation factor of 10% for building coverage and 5% for contents coverage. The current deductible may be used. Increases in coverage above the Option B will be subject to a 30-day waiting period.



Policyholder Rights

Actions Available When You Disagree with your Claims Settlement Amount

The Federal Emergency Management Agency (FEMA) encourages all flood insurance policyholders with questions to talk to their adjusters or insurers. Your adjuster and insurer can help clarify how the flood insurance policy applies to your claim and take immediate action if needed.

After you receive a full or partial claim denial letter from your insurer, you have several options available if you disagree with the claim denial:

- * You must file your appeal within sixty (60) days of the date of the insurer's denial letter by sending it to FEMA, 400 C Street SW, 6th Floor SW, Washington, D.C. 20472-3010 or FEMA-NFIP-Appeals@fema.dhs.gov.
- * When you appeal, you must explain the issue(s) in writing, include a copy of the denial letter, and provide any supporting documentation.
- * Once you appeal, you can later choose to file suit against your insurer, but you can no longer seek appraisal under your flood insurance policy.
- * You cannot appeal after initiating the appraisal or litigation options.

Seek appraisal for disputes above the claim settlement amount of a covered loss (if applicable). The flood insurance policy permits policyholders to request appraisal of the amount of loss for flood damaged property.

- * If you and your insurer agree that a covered loss occurred but disagree about the dollar amount of the loss, appraisal could resolve the claim.
- * You cannot appeal after initiating the appraisal option.

File suit within one (1) year of the denial of your claim. Federal law permits you to file suit in the Federal District Court where the damage occurred within one (1) year of when your insurer first denied all or part of your claim (42 U.S.C. § 4072; 44 C.F.R. § 62.22).

- * If FEMA's NFIP Direct is your insurer, you may file suit against FEMA.
- * For all other insurers, you must sue the insurer. FEMA is not a proper party pursuant to 44 C.F.R. § 62.23(g).
- * Filing an appeal does not extend the period to file suit against your insurer.
- * You may file suit after filing an appeal with FEMA.
- * You cannot appeal after initiating the litigation option.

Letters of Representation

Whenever you want to authorize another party to speak with FEMA about your claim, you will need to do so in writing. By law, FEMA must obtain this authorization to protect your privacy. To authorize another individual(s) to represent you, please submit documentation that includes your full name, address, date and place of birth, the name(s) of your representative(s), and your signature. You must have this document notarized or include the following statement: "I declare under penalty of perjury that the foregoing is true and correct. Executed on (include date) by (provide your signature)."

Additional Information

For more information about flood insurance claims, please reference the Flood Insurance Claims Handbook provided to you or online at <https://agents.floodsmart.gov/sites/default/files/fema-claims-handbook-04-2022.pdf>

